

22SMCV00758 22SMCV00758

County: los-angeles

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Case Number: 22SMCV00758 Hearing Date: September 22, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 22, 2026

CASE NUMBERS

SC128312 r/w 22SMCV00758

MOTION

Motion for a New Trial

MOVING PARTY

Defendant Joseph Shemaria

OPPOSING PARTY

Plaintiff Northwestern Engineering Company

BACKGROUND

This case arises from a dispute between adjacent property owners Plaintiff Northwestern Engineering Company ("Plaintiff" or "Northwestern") and Defendant Joseph Shemaria ("Defendant" or "Shemaria").

Case number SC128312 was filed on November 1, 2017, and involves a dispute over a portion of the pathway between the properties, located toward the front of the properties, where Plaintiff has historically kept items in storage. The operative verified Second Amended Complaint alleges four causes of action for (1) quiet title to a prescriptive easement; (2) trespass; (3) nuisance; and (4) temporary restraining order and preliminary injunction.

The crux of the complaint asserts that Plaintiff has used the "Breezeway," a path that runs from Ocean Front Walk at the front or western part of the properties to the "Speedway," an alley at the rear or eastern part of the properties for ingress and egress since July 1999 and has made improvements, including erecting shelving for storage and pouring concrete on a portion of the pathway. (SAC ¶¶ 7-8.)

On May 6, 2019, Shemaria filed a Verified Cross-Complaint in case number SC128312 for (1) trespass, (2) unjust enrichment, and (3) nuisance. The crux of Shemaria's cross-complaint is that from 1983 through 2017, Plaintiff and its tenants used the Breezeway with Shemaria's permission to store beer kegs and other materials, but Shemaria revoked this permission in June 2017 and demanded that Plaintiff remove the kegs, an enclosure, and shelving, which Plaintiff has refused to do. (Cross-Complaint ¶¶ 2-5, 10-11.)

Case number 22SMCV00758, which was filed on May 24, 2022, concerns a fence Defendant allegedly constructed in December 2021, creating a barrier between the properties and preventing Plaintiff and its tenants from receiving deliveries and disposing of trash via a southeastern corner of Defendant's property, as they had done since 1999. (Complaint ¶¶ 8-12.)

Following a bench trial in the related cases (consolidated for trial only), the Court issued an Amended Statement of Decision on June 11, 2026.

Regarding SC128312, the Court entered judgment in Defendant's favor on the SAC, and entered judgment in Plaintiff's favor on the Cross-Complaint.

Regarding 22SMCV00758, the Court entered judgment in Plaintiff's favor

concerning the first two causes of action for a prescriptive easement and Defendant's unreasonable interference therewith vis-à-vis the construction of a fence blocking the Breezeway, as well as the fourth cause of action for injunctive relief, but entered judgment in Defendant's favor concerning the third cause of action for private nuisance.

Defendant now moves for a new trial, pursuant to Code of Civil Procedure section 657. The Notice of Intent lists the following five grounds for the motion: (1) irregularity in the proceedings; (2) accident or surprise, which ordinary prudence could not have guarded against; (3) newly discovered evidence, material to Defendant that could not have been discovered and presented with reasonable diligence at trial; (4) insufficiency of the evidence to justify the verdict and/or decision, and is contrary to law; and (5) legal errors occurring at trial that were properly excepted to.

However, the memorandum of points and authorities addresses only two grounds: (1) insufficiency of the evidence pursuant to Code of Civil Procedure section 657, subdivision (6) and (2) errors in law pursuant to Code of Civil Procedure section 657, subdivision (7).

As such, the Court deems forfeited any arguments as to irregularity in the proceedings, accident or surprise, and newly discovered evidence.

Plaintiff opposes the motion.

LEGAL

STANDARDS – MOTION FOR A NEW TRIAL

Code of Civil Procedure section 657, in pertinent part, provides:

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

6. Insufficiency

of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error

in law, occurring at the trial and excepted to by the party making the application.

TIMELINESS

Motions for New Trials are governed by strict, jurisdictional statutory time limits. (See Code Civ. Proc., § 659.)

The notice of motion must be filed and served within 15 days of the Clerk of the Court's notice of entry of judgment. (Code Civ. Proc., § 659, subd. (a)(2).) Here, the judgment and the notice of entry of judgment were entered on July 22, 2026. Fifteen days later is August, 6, 2026. Defendant timely filed a Notice of Intent to Move for New Trial on August 6, 2026.

Further, 10 days after filing the notice, the moving party must file and serve the motion(s) and supporting papers. (Code Civ. Proc., § 659a.) Ten days after August 6 is Sunday, August 16. By operation of Code of Civil Procedure section 12a, subdivision (b), which expressly applies to Section 659's deadlines, the deadline was extended to Monday, August 17. Defendant timely filed and electronically served a Memorandum of Points and Authorities and Declaration in support of the Motion for New Trial on August 17.

The opposing party has 10 days after service of the moving papers to serve the opposing papers. (Code Civ. Proc., § 659a.) That deadline may be extended by up to 10 days, for good cause shown by affidavit. (Ibid.) On August 31, Plaintiff filed and served the opposition.

The Court notes that while Code of Civil Procedure sections 1013 and 1010.6 do not apply to extend the time within which the moving party may file a Notice of Intent to Move for New Trial (see Code Civ. Proc., § 659, subd. (b); § 1013, subd. (a), (c), (e); § 1010.6, subd. (a)(3)(B)), it is not immediately clear to the Court that they do not apply to extend the time within which the opposing party may file an opposition to the motion.

Notably, the notice of intent must be filed within fifteen days after service by the clerk of the notice of entry of judgment, and that time is not extended by operation of Sections 1013 or 1010.6, but the opposition to the motion must be filed within only ten days after service by the moving party of the motion and supporting papers. Thus, it appears as though the five additional days for service by mail are incorporated into the moving party's fifteen-day deadline, but not the opposing party's deadline.

Even further, the Court is generally within its discretion to extend the opposition deadline by up to 10 days, and the Court does not generally lose jurisdiction to consider late-filed affidavits, especially where, as here, the opposing party has not objected to the timeliness. As such, the Court exercises its discretion and considers the opposition.

The reply is due five days after service of the opposition. (Code Civ. Proc., § 659a.) Five days after August 31, is Saturday, September 5, 2026. By operation of Code of Civil Procedure section 12a, subdivision (b), which expressly applies to Section 659's deadlines, the deadline was extended to Monday, September 7, 2026. As of September 21, 2026, no Reply had been received by the Court.

ANALYSIS

I.

INSUFFICIENCY OF THE EVIDENCE

Defendant argues insufficiency of the evidence in four ways:

1.

Insufficiency of the evidence to establish a "definite and certain" path of use.

2.

Insufficiency of the evidence to find the necessary element to establish Plaintiff's use was "open and notorious" as opposed to mere passive acquiescence.

3.

Insufficiency of the evidence to establish Plaintiff's usage was "continuous and uninterrupted" for five (5) years.

4.

Insufficiency of the evidence to establish Plaintiff's five (5) years of usage of the Speedway.

a. Definite
and Certain Path of Use

Defendant first argues that because the Court determined that Plaintiff's access was limited so as not to interfere with parked vehicles, Plaintiff was effectively prevented from using the "easement" to the dumpsters and to receive deliveries except when the parking space was vacant, transforming it to a conditional privilege, not a true easement.

The Court actually held (1) Plaintiff met its burden of proof by clear and convincing evidence that Plaintiff and/or its tenants have since 1999 traversed over the 42" by 98" corner of Defendant's parking lot for the purposes of disposing trash and receiving deliveries, and therefore had established a definite and certain path of use; (2) Plaintiff merely requested to continue traversing the Speedway without permanent impediments, such as fencing or a barrier; (3) Defendant failed to present evidence substantiating his argument that Plaintiff's requested prescriptive easement would require Defendant to reconfigure and re-stripe the parking lot; and (4) Defendant's contention that Plaintiff intended to use the Speedway for illegal purposes, such as a "dump site" creating a public nuisance was unsupported by the evidence.

In essence, Defendant is arguing that because the Court held both parties were entitled to use and traverse the Speedway, so long as neither party erected a permanent or immovable barrier preventing the other's use, Plaintiff's ability to use the Speedway is effectively blocked whenever a car is temporarily parked there, and because Plaintiff's ability to traverse the Speedway is sometimes blocked, it is not a true easement.

The only case Defendant cites in support of his argument is Connolly v. McDermott (1984) 162 Cal.App.3d 973.

That case focused on the scope of use of the prescriptive easement, not temporary obstacles in the easement due to the nature of the joint use. The court first explained: "The scope of a prescriptive easement is determined by the use through which it is acquired. A person using the land of another for the prescriptive period may acquire the right to continue such use, but does not acquire the right to make other uses of it." (Id. at p. 977.)

The appellate court concluded the trial court had not erred in restricting the scope of the easement at issue to "livestock herding operations" by "men and horses," refusing to grant an easement for motor vehicle use, notwithstanding evidence that motorcycles also sometimes traversed the easement, because the evidence showed plaintiffs concealed their vehicular use from defendants, and thus, the vehicular use was not "open and notorious" and expanding the easement to allow motor vehicle traffic would constitute a substantial new burden on the servient tenement, as motor vehicles like motorcycles create more noise than livestock. (Connolly, supra, 162 Cal.App.3d at pp. 977-979.)

But nothing in Connolly supports Defendant's argument that the path cannot be properly characterized as an easement if sometimes the other party's joint use of the area temporarily blocks the path.

Further, Defendant has not established that there was insufficient evidence supporting the Court's determination that the easement in question constitutes the 42" by 98" corner of Defendant's parking lot.

b. Open
and Notorious

Defendant's "open and notorious" argument is not the model of clarity. It appears as though Defendant is arguing that Plaintiff's use was not "open and notorious" because it was not adverse to Defendant and Defendant acquiesced in Plaintiff's use.^[1]

The elements for a prescriptive easement are for a period of five years prior to the commencement of the action:

1. Plaintiff has been using Defendant's property;

2.

Plaintiff's use was continuous and uninterrupted;

3.

The use was open and easily observable, or was under circumstances that would give reasonable notice to Defendant; and

4.

Plaintiff did not have Defendant's permission to use the property.

(See

CACI 4901 (2026 ed.))

Thus, to be "open and notorious" the use must have been open and easily observable, or done under circumstances that would give reasonable notice to the Defendant. Because Defendant argues he acquiesced in Plaintiff's use, Defendant concedes he had actual notice of the use, making such use open and notorious.

Further, the Court found Exhibits 201, 221, 223, 224, 226, 227, and 227 (photos taken by the Defendant" illustrate the "open and easily observable use of the Speedway by Plaintiff and its tenants" or that Defendant had reasonable notice of Plaintiff's and its tenants' use.

Thus, Defendant has not demonstrated that the Court's "open and notorious" finding was inadequately supported by the evidence.

c. Continuous

and Uninterrupted for Five Years

Defendant argues the Court's finding that Plaintiff's use was continuous and uninterrupted for a period of five years was unsupported by the evidence, because Plaintiff did not advance any evidence about how often the rear parking space was occupied, effectively blocking the easement. Further, Defendant argues that the Court's finding that Plaintiff's use of the Speedway did not interfere with Defendant's tenants' parked vehicles was a tacit recognition that the tenants' parking rights conflict with Plaintiff's purported rights in the easement.

But Defendant's own authorities demonstrate such evidence was not required.

To acquire a prescriptive easement, the easement must be used in the required manner continuously and without interruption for the full prescriptive period [of five years]. The actual use required depends on the nature of the easement. It need not be used every day during the prescriptive period. The use is sufficient if it occurs on those occasions when it is necessary for the convenience of the user. If a right of way over another's land has been used for more than five years, it is not necessary, to make good such use, that the claimant has used it every day. He uses it every day, or once in every week, or twice a month, as his needs require. He is not required to go over it when he does not need it, to make his use of the way continuous. The claimant is required to make such reasonable use of the way as his needs require.

(Fogerty
v. State of California (1986) 187 Cal.App.3d 224, 239 [cleaned up].)

Further, Defendant cites to Zimmer
v. Dykstra (1974) 39 Cal.App.3d 422.

In Zimmer, a landowner obstructed its neighbor's use of the landowner's half of the alleyway by erecting a "grape stake" fence, permitting her tenants to park automobiles there, and erecting a chain link fence. The trial court held that the plaintiffs had a prescriptive easement over the defendant's half of the alleyway, ordered her to remove the chain link fence, and awarded damages. The Court of appeal affirmed. The Defendant had argued the Plaintiffs had never acquired a prescriptive easement, and even if they had, it had been extinguished. The Court of Appeal disagreed on the ground that neither the "grape stake" fence, nor the parking of automobiles, nor the chain link fence existed for the statutory period for Defendant to reclaim the land and they did not meet the criteria for "tacking."

Here, the Court cited the following evidence as supporting its finding that Plaintiff and its tenants used the Speedway continuously since 1999 to access trash dumpsters: RT 1 - 157:11-160:15; 166:6-26; 199:1-15; 200:1-23; Exh. 75, p. 14.) Further, Zachary Best testified that he and other employees of the Venice Beach Bar traverse the Speedway several times per day to dispose of trash or accept deliveries.
(RT 2 – 38:4-39:18; 40:3-19.)

Further, Jim Adelstein testified he observed employees of Plaintiff's tenants Venice Bistro and Piccolo use the Speedway to access the dumpster and to receive deliveries. (RT 1 at 38:11-18; 56:1-7; 58:24-28.) Further, Antonio Mure testified his employees would use the Speedway to access trash bins when he leased space from Plaintiff. (RT 2 – 4:12-28; 24:12-17.)

That a tenant's car may have occasionally parked in the parking space, temporarily obstructing Plaintiff's use of the Speedway does not, pursuant to Fogarty, undermine Plaintiff's continuous and uninterrupted use.

Further, pursuant to Zimmer, the burden is on Defendant to demonstrate he reclaimed the Speedway by permanently blocking Plaintiff's path with a parked vehicle, not on Plaintiff to demonstrate how often and for how long a car was sometimes parked there.

Therefore, Defendant has not met his burden of demonstrating that the evidence inadequately supports the Court's finding of continuous use for a period of five years.

II.

ERRORS IN LAW

Defendant argues there were three errors in law:

1.

Granting judgment in favor of Plaintiff on the first and second causes of action because the Complaint in the 22SMCV00758 matter was filed prior to the required five (5) years of usage and should have been dismissed.

2.

Shifting the burden of proof to Defendant prior to Plaintiff establishing a prima facie case for all necessary elements for a prescriptive easement.

3.

Requiring Defendant to prove express "consent" as opposed to implied consent or mere acquiescence and/or a "neighborly

accommodation.”

a. 22SMCV00758

Complaint Timeliness

Plaintiff alleged, and as discussed above, the evidence presented at trial supported the Court’s finding that Plaintiff had traversed the Speedway to receive deliveries and access the dumpster since July 1999. The Complaint in Case No. 22SMCV00758 was filed more than five years later, on May 24, 2022.

Defendant argues that Mr. Mure testified that he moved into the Piccolo restaurant location in March 2004 and left in the middle of 2009. Because Mr. Adelstein (Plaintiff’s president) did not take over Mr. Abelar’s restaurant until July 2016, more than five years later, Mr. Mure’s time cannot be tacked onto Adelstein’s time. Not so.

Plaintiff purchased the multi-tenant retail property in 1999. Plaintiff’s tenants include the Venice Bistro, formerly owned by Abelar until it was directly taken over by Adelstein in 2016, Venice Beach Bar, currently managed by Best, and the former Piccolo restaurant, which was co-owned by Mure from March 2004 to 2009. Thus, the use by any of these tenants constitute Plaintiff’s continuous use of the Speedway. Taken together, the evidence demonstrates that Plaintiff’s tenants, including Venice Bistro, Venice Beach Bar, and Piccolo Restaurant used the Speedway continuously for the statutory period long before the Complaint was filed in 2022.

Thus, there was no legal error in considering the 22SMCV00758 complaint, as it was filed more than five years after the continuous and uninterrupted uses began.

b. Shifting

the Burden of Proof to Defendant and Express Consent versus Implied Consent or Acquiescence

As discussed above, because there was no error in determining that the five-year prescriptive period had run before the Complaint was filed, there was similarly no error in shifting the burden of proof to Defendant to demonstrate otherwise.

As for consent, the Court found Defendant not credible in his testimony about consent, because although he first testified that he gave Abelar permission to access the Speedway in June 1984

and revoked that permission in June 2017, on cross-examination he denied ever having granted permission and seemed ambivalent about use of the Speedway. Further, this testimony contrasted with Adelstein's testimony that neither Abelar nor other tenants told him they had permission to use the Speedway, Defendant's insistence that he did not give Adelstein permission to use the Speedway, Mure's testimony that neither Defendant nor anyone else gave him permission to use the Speedway, and Best's testimony that Best never asked Defendant for permission to use the Speedway. Even further, in Exhibit 201, Defendant tacitly concedes he did not give permission to use the Speedway.

Taken together, the Court found a reasonable inference that the tenants used the Speedway without Defendant's consent. Thus, there was no error in law in finding Plaintiffs had proved no consent to use the Speedway by clear and convincing evidence and Defendant failed to meet his evidentiary burden to demonstrate otherwise in defense of Plaintiff's showing.

III.

INTERNALLY INCONSISTENT AND IRRECONCILABLE FINDINGS

Although not clearly stated in the introduction roadmap to his memorandum of points and authorities, Defendant also argues the Court made several internally inconsistent and irreconcilable findings.

a. Inconsistent

Credibility Determinations Regarding Defendant's Testimony on the Speedway versus the Breezeway

First, Defendant argues the Court applied opposite credibility determinations to the same witness on the same facts within a single ruling. Specifically, Defendant contends the statement of decision reaches opposite conclusions on the Breezeway and Speedway, despite an evidentiary record that is essentially the same.

As to the Breezeway, the Court gave more weight to Defendant's testimony that he granted Abelar permission to use the Breezeway in June 1984, as corroborated by the January 7, 2000 letter, purporting to "re-establish" or take "back" the three feet pathway from the Boardwalk to the parking lot (effectively revoking consent thereto), and found that Adelstein's failure to confer with

Defendant about the 2000 letter and its June 2016 email seeking permission to install steel gates and to concrete in the entire space demonstrated Plaintiff knew it lacked rights to the Breezeway.

Yet, as to the Speedway, the Court found Defendant not credible in light of the fact that Defendant failed to proffer any supporting documentary evidence that he gave permission for Plaintiff or its tenants to use the Speedway.

Defendant argues while the Court is within its discretion to believe a witness on one point but disbelieve that same witness on another point, here the Court's disparate treatment was error, because both positions arose from the same 1984 conversation and the same landlord-tenant relationship.

The Court disagrees that there was any erroneous contradiction here. In light of Defendant's contradictory testimony and lack of supporting documentary evidence vis-à-vis the Speedway, the Court found that the 1984 conversation encompassed use of the Breezeway, but not the Speedway. And as Defendant concedes, it is well within the Court's discretion to determine whether a witness is lying, exaggerating, or mistaken about one point of testimony, but not another, especially where, as here, the corroborating evidence supports that split finding.

b. Inconsistent

Treatment of Defendant's Revocation

Second, Defendant argues that the Court inconsistently treated Defendant's 2000 revocation of permission as evidence that permission existed for the Breezeway but treated the Exhibit 201 email's purported revocation of permission to use the Speedway as tacit admission that no such permission existed in the first instance.

The differential treatment is explained by the contents of those respective correspondences.

The 2000 letter says, "I need back the three feet that runs from the Boardwalk to my parking lot" and "We have decided to re-establish our three feet pathway to the Boardwalk." (Ex. 2, emphasis added.) Thus,

the implication from the 2000 letter is that permission was previously granted and Defendant was revoking such permission by way of the 2000 letter.

By contrast, Exhibit 201, which is a June 16, 2022 email from Defendant to Plaintiff's counsel indicates:

For years, I resisted putting up a fence and had to deal with any number of regular complaints from my tenants regarding the intolerable garbage/trash/foodstuffs/grease due to your client's failure and refusal to respect my property vis-à-vis the trash situation. If Mr. Adelstein wants to know the reason for my putting up the fence, let them know that it was a direct result of his own negligence and recklessness in the handling of what is depicted in these photographs. Numerous former tenants have written to the Health Department regarding this long-running situation that could only be stopped by defense that I finally put in.

Defendant clearly communicated dissatisfaction with Plaintiff's tenants' use of the dumpster by way of the Speedway, which suggests Defendant did not consent to such use. Further, the fact that the situation "could only be stopped" by Defendant's putting in a fence suggests the mere revocation of consent was not an available option, as it would have been had Defendant originally provided consent.

Thus, the Court did not err in reaching differing inferences from the 2000 letter vis-à-vis the Breezeway and the 2022 email regarding the Speedway on the issue of whether consent had originally been provided for each purported easement.

c. Inconsistent

Treatment of Adelstein's Conduct and Testimony

Defendant next takes issue with the Court's asymmetrical treatment of Adelstein's conduct and testimony vis-à-vis the Speedway and Breezeway. Specifically, the Court cites Adelstein's failure to confer with Defendant about the January 2000 letter, Adelstein's June 2016 email inquiring about gates and concrete, his failure in Exhibit 30 to disclose that he had become the owner of the Venice Bistro, and his general "state of mind" regarding the Breezeway as evidence undermining his credibility vis-à-vis the Breezeway.

Yet, the Court did not make similar adverse credibility findings

regarding Adelstein's testimony vis-à-vis the Speedway.

But crucially, several other tenant witnesses corroborated Adelstein's testimony vis-à-vis the Speedway, whereas the documentary evidence undermined Adelstein's testimony vis-à-vis the Breezeway.

Thus, it was not error to make differing credibility determinations on Adelstein's testimony about the Breezeway versus the Speedway.

d. Inconsistent

Weight Given to Exhibit 75

Defendant next challenges the Court's giving "little weight" to Exhibit 75, yet relying on it to determine the scope of the easement.

Exhibit 75 is a parking analysis chart Defendant proffered as evidence that he would need to re-stripe the parking lot, if the Court found in favor of Plaintiff with respect to the Speedway easement. The Court expressly held that granting Plaintiff a prescriptive easement over the Speedway would not prevent Defendant's tenants from also using the Speedway, except in a manner that would permanently block Plaintiff's use of it (for example by erecting a permanent fence or other barrier). Thus, the parking analysis diagram did not materially support Defendant's argument that the easement would necessitate re-striping the parking lot.

Notwithstanding, the diagram was useful for the Court to visualize and quantify the disputed area and proposed pathway.

Thus, there was no error in weighing the same exhibit differently with respect to different legal and factual arguments.

e. Selective

Credibility Findings Avoid the Five-Year Prescriptive Period Problem

Defendant points out that the Statement of Decision notes in a footnote that the 22SMCV00758 case was commenced on May 24, 2022, which is less than 5 years from the date Defendant purportedly revoked his permission to use the Speedway in June 2017. Thus, the inconsistent credibility determination vis-à-vis the 1984 permission testimony conveniently avoids the 5-year prescriptive period problem as to the Speedway.

But as discussed above, the Court's disparate treatment of the two separate easement disputes at issue is supported by the lopsided corroborating evidence in the record, as well as the differing nature and locations of the two easements. The Breezeway involved the erection of storage shelves and the permanent storage of materials. Evidence of this permission was corroborated by the 2000 revocation letter and Plaintiff's own email inquiring about a grate and concrete (which would not have been necessary, had Plaintiff been under the impression that it had a legal right to the area in question).

By contrast, the Speedway involved merely traversing a path at the back of the properties to access the dumpster and to receive deliveries. Defendant proffered no corroborating documentary evidence (like the 2000 letter or 2016 email for the Breezeway) evidencing his purported permission, and Plaintiff's narrative that no permission to use the Speedway was granted was corroborated by the testimonies of several of Plaintiff's tenants.

Thus, the nature, location, and corroborating evidence demonstrates that while Defendant formally granted Plaintiff permission to use the larger, more prominent Breezeway in a permanent way in 1984, and then attempted to revoke that permission by way of the 2000 letter, the same permission was not granted for Plaintiff's use of the Speedway as a shortcut path to and from the dumpster and delivery trucks.

That the Court found permission was not granted vis-à-vis the Speedway in the same way it had been granted for the Breezeway also avoided Defendant's ripeness arguments does not mean that there was insufficiency of the evidence or that the Court made a legal error in making the differing findings as to the different easements.

CONCLUSION AND ORDER

For the foregoing reasons, the Court does not find any insufficiency of the evidence or errors in law to support Defendant's request for a new trial. As such, the Court denies Defendant's motion for a new trial in its entirety.

Plaintiffs shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 22, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court

[1] Whether Defendant acquiesced in Plaintiff's use is immaterial because the Court did "not find Defendant to be credible about granting permission to use the Speedway to Plaintiff, or its tenants, at any time." (See Amended Statement of Decision, p. 12.)